

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 2, 2026
8:30 AM/1:30 PM

7. SUNG LEE V. YUNJEE AHN

25FL1114

On January 8, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders and property control orders. The RFO was served on January 12th however the Notice of Tentative Ruling was not served, nor was a blank FL-320.

Respondent filed a Responsive Declaration to Request for Order on March 19th, it was served on March 18th.

The parties attended Child Custody Recommending Counseling (CCRC) on February 2, 2026. They were unable to reach any agreements and as such, a report with recommendations was prepared on March 19, 2026. It was mailed to the parties on March 20th.

Petitioner is requesting joint legal and joint physical custody of the children with a 2/2/5 schedule. He further requests temporary exclusive use and possession of the home located at 11084 International Drive in Rancho Cordova. He agrees to be responsible for timely payment of the mortgage for the property. He asks that the parties be ordered to use Our Family Wizard for communications and that the parties be ordered to respond to messages within 24 hours. He proposes a co-parenting class for the parties and asks that the court make any additional orders as it deems proper. Finally, he asks that Respondent be ordered not to use the children in online advertisements.

Respondent asks the court to issue custody and visitation orders and order that neither parent involve the children in adult disputes or litigation matters. She asks for an order precluding both parents from making disparaging remarks about the other parent in the presence of the children. She asks that the parties each be ordered to complete a co-parenting class and order the parties to utilize a co-parenting communication platform. She asks that the court make any additional orders it deems necessary or appropriate in the best interests of the children.

After reviewing the filings as outlined above, the court does find the recommendations contained in the March 19, 2026 CCRC report to be in the best interests of the minors, they are hereby adopted as the orders of the court. Additionally, Respondent is ordered not to use the children in advertisements, including but not limited to online Facebook advertisements. This order does not preclude Respondent from posting photos of the children on her own personal Facebook page for purposes other than commercial advertisement.

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Petitioner shall have temporary exclusive use and possession of the residence located at 11084 International Drive in Rancho Cordova. He is ordered to timely pay the mortgage and all other expenses associated with his occupancy of the home.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH), however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #7: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE, THE COURT DOES FIND THE RECOMMENDATIONS CONTAINED IN THE MARCH 19, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINORS, THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT. ADDITIONALLY, RESPONDENT IS ORDERED NOT TO USE THE CHILDREN IN ADVERTISEMENTS, INCLUDING BUT NOT LIMITED TO ONLINE FACEBOOK ADVERTISEMENTS. THIS ORDER DOES NOT PRECLUDE RESPONDENT FROM POSTING PHOTOS OF THE CHILDREN ON HER OWN PERSONAL FACEBOOK PAGE FOR PURPOSES OTHER THAN COMMERCIAL ADVERTISEMENT.

PETITIONER SHALL HAVE TEMPORARY EXCLUSIVE USE AND POSSESSION OF THE RESIDENCE LOCATED AT 11084 INTERNATIONAL DRIVE IN RANCHO CORDOVA. HE IS ORDERED TO TIMELY PAY THE MORTGAGE AND ALL OTHER EXPENSES ASSOCIATED WITH HIS OCCUPANCY OF THE HOME.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.